

Writ Petition No.52452 of 2024

Munir Ahmad

Federation of Pakistan, etc.

10.04.2025. M/s Muhammad Azhar Siddique and Amna Liaquat, Advocates for the petitioner.
Mirza Nasar Ahmad, Additional Attorney General, and Nauman Khalid, Assistant Attorney General for Pakistan, with Aqeel Khan D.D Law/FIA and Muhammad Azeem A.D Law/FIA.

Through this instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, as public interest litigation, has challenged and prayed that the Standing Operating Procedure (SOPs), issued through Standing Order No.2/2018 bearing Reference No.PS/DG/FIA/2018/682 dated 27.04.2018, whereby Provisional National Identification List (PNIL) is maintained, be declared without lawful authority.

2. The learned Additional Attorney General, objected to the maintainability of the instant petition by stating that the petitioner on behalf of the Judicial Activism Panel, etc., had filed W.P. No.2199/2024 titled “Judicial Activism Panel, etc. Vs. The Federation of Pakistan, etc.”, before the Islamabad High Court, Islamabad, which was dismissed by the said court on 03.10.2024. The learned Additional Attorney General further submitted that the petitioner has concealed this fact while filing the instant petition before this Court and the order passed thereon.

3. When confronted with this, the learned counsel for the petitioner submitted that the Judicial Activism Panel, etc., filed the petition, which was not filed by the present petitioner,

Munir Ahmad, Advocate. In response to the Court's query, the learned counsel for the petitioner stated that Munir Ahmad, Advocate, works in his office. However, he operates the Judicial Activism Panel, which is an NGO. He acknowledged that he was the counsel in W. P. No. 2199/2024 and filed the instant petition. However, when the Court inquired, he could not identify the relevant paragraph where the filing of W. P. No. 2199/2024 was noted. The learned counsel for the petitioner stated that the petitioner had mentioned this fact while filing Civil Miscellaneous No.4/2024. The learned counsel was aware that he filed the writ petition No.2199/2024 before the Islamabad High Court but concealed this fact while submitting the instant petition. Nevertheless, the learned counsel for the petitioner stated that in paragraph No.6 of Civil Miscellaneous No.4/2024, he informed this Court that he had filed the abovementioned petition before the Islamabad High Court. Upon reviewing the file, it reveals that on 11.09.2024, the learned counsel for the petitioner was directed to place on record a certified copy of the order dated 27.03.2018, alongwith the final order passed in human rights case No. 26962 of 2017 by the Honorable Supreme Court of Pakistan. On 27.09.2024, the learned counsel for the petitioner submitted Civil Miscellaneous No. 04 of 2024 to include the certified copies of orders dated 06.02.2018 and 27.03.2018 issued in human rights case No. 26962 of 2017 by the Honorable Supreme Court of Pakistan, which was granted. In the petition, i.e., Civil Miscellaneous No. 4/2024, in paragraph No. 6, the learned counsel for the petitioner referenced the filing of W. P. No. 2199/2024. However, that application was filed to place documents on record. When the Court inquired, the learned counsel for the petitioner stated that he was unaware of any order passed in the abovementioned petition

before the Islamabad High Court. When confronted with the order placed on record, which indicated that his presence was noted and his arguments were cited, he could not refute this; however, he mentioned that the said order has not been challenged before the Honorable Supreme Court of Pakistan.

4. Given the above, the instant petition is not maintainable, as the matter was already brought before the competent court of law and dismissed. The order passed therein attained finality, and for the same self-relief, two parallel proceedings before the two forums cannot be taken.

5. This court is affirmatively of the view that repeated recourse to the jurisdiction of this Court under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, is initiated merely as a means of publicity and without any supervening cause or justification based on public interest. The time, effort, and attention of the Court, which should be devoted to dealing with genuine causes and cases, are deflected in the hearing of these petitions, which are conducted without a sense of restraint and are drafted without any concern for the rules of pleadings and without a sense of responsibility. Habitual litigants are increasingly flooding the Courts with frivolous petitions. PILs are filed on almost every subject under the sun. Many of them are exercises for garnering publicity. This tends to destroy the sanctity of PILs as a powerful instrument of securing socio-economic justice to the marginalized and underprivileged. The time of the Court is exhausted in dealing with frivolous cases with no genuine cause of public concern. This tendency must be firmly stopped by providing orders for anticipatory costs. Unless this is done, the Court would become a helpless spectator to the loss of public time and resources in dealing with motivated litigation.

When lakhs of cases await judicial decision, the Court cannot allow the institution administering justice to become a hapless victim of frivolous filings. However, this court shows restraint from taking any adverse action at this stage.

6. For what has been discussed above, the instant petition has no force and is hereby ***dismissed***.

(Aalia Neelum)
Chief Justice

Approved for reporting

Chief Justice

*This order was dictated,
pronounced, prepared,
and signed on 10.04.2025*

*Ikram**